

V. CONCLUSION

Based on the foregoing, and the motion being unopposed, the motion for terminating and evidentiary sanctions is DENIED without prejudice at this time.

The motion for monetary sanctions in the amount of \$460.00 in favor of Defendants and against Plaintiffs is GRANTED.

Plaintiffs are ORDERED to Comply with discovery responses as ordered on April 9, 2026 (formal Order on May 7, 2026), and provide responses within ten (10) days of this hearing.

Plaintiffs are ORDERED to pay the \$460.00 in sanctions in this motion, as well as the \$780.00 in sanctions previously ordered by the Court on April 9, 2026. The total sanction amount of \$1,240.00 is to be paid within ten (10) days of this hearing.

The Court will prepare the formal Order.

Calendar Line # 5

Case Name Monica Ramos et al vs Angela Pollard, MD et al

Case No. 25CV462475

Motion for Leave to File

Before the court is plaintiffs Rocco Ramos, Monica Ramos, and Richard Ramos's motion for leave to file third amended complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

According to the second amended complaint ("SAC"), on March 1, 2023, plaintiff Monica Ramos ("Monica"), sought prenatal care for an unborn child, plaintiff Rocco Ramos ("Rocco") on October 6, 2023.⁴ (SAC, ¶ 36). Prenatal care was rendered through Rocco's birth by gynecologist and obstetrician, defendant Angela Michelle Pollard, M.D. ("Dr. Pollard") and her practice groups/ corporations. (*Ibid.*). Dr. Pollard was assisted by Christine Kulle, NP ("Kulle"), among other individual defendants. (*Ibid.*).

Rocco was born with a birth defect called arthrogryposis multiplex congenita and quadriplegic cerebral palsy, both of which are incurable, non-progressive conditions that cause lifelong disability and special needs. (SAC, ¶ 42). Had Monica been given any information that her unborn son had any sort of fetal anomaly as early as May 5, 2023 to make an informed decision, she would have elected to have a second-trimester surgical abortion for pregnancy termination due to fetal anomalies. (*Ibid.*).

On September 19, 2025, plaintiffs Rocco, Monica, and Richard Ramos (collectively, "Plaintiffs") filed the operative SAC against various individuals and entities, including Dr. Pollard, Angela Michelle Pollard, M.D., Inc., Above Parr Women's Center, and Kulle (collectively, the "Pollard Defendants"), among others.

⁴ The court refers to the plaintiffs by their first names for purposes of clarity. No disrespect is intended. (See *Rubenstein v. Rubenstein* (2000) 81 Cal.App.4th 1131, 1136, fn. 11).

Before the court is Plaintiffs' motion for leave to amend to add punitive damages against the Pollard Defendants.⁵ The Pollard Defendants oppose the motion.

II. LEGAL STANDARD

In general, under Code of Civil Procedure section 473(a)(1), a trial court has wide discretion, "in furtherance of justice," to "allow a party to amend any pleading." (Code Civ. Proc., § 473, subd. (a)(1)). A motion for leave to amend to allege punitive damages against a healthcare provider, however, is not a standard motion for leave to amend under Code of Civil Procedure, section 473. Instead, it is governed by Code of Civil Procedure section 425.13.

Code of Civil Procedure section 425.13, subdivision (a) bars a plaintiff from pleading punitive damages against a healthcare provider unless the court enters an order allowing an amended pleading that includes a claim for punitive damages to be filed.

A motion for leave to amend punitive damages against a healthcare provider "operates like a demurrer or motion for summary judgment in 'reverse.'" (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 719 (*College Hospital*)). The plaintiff has the burden of substantiating his or her claim for punitive damages with factual recitals made under penalty of perjury and set forth competent admissible evidence within the personal knowledge of the declarant. (*Id.* at pp. 719-720). The court must deny the motion if the facts are legally insufficient to support a punitive damages claim or the evidence either negates or fails to reveal the actual existence of a triable claim. (*Pomona Valley Hospital Medical Center v. Superior Court* (2013) 213 Cal.App.4th 828, 835 (*Pomona Valley Hospital*)). The court may not "reject a well-pled and factually supported punitive damages claim simply because the court believes that the evidence is not strong enough for probable success before a jury." (*College Hospital, supra*, 8 Cal.4th at p. 709).

Civil Code section 3294 authorizes punitive damages upon clear and convincing proof of malice, oppression, or fraud. Malice means conduct intended to cause injury or despicable conduct undertaken with willful and conscious disregard of the rights or safety of others. (Civ. Code, § 3294, subd. (c)(1)). Fraud means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intent to deprive a person of property or legal rights or otherwise cause injury. (Civ. Code, § 3294, subd. (c)(3)).

III. ANALYSIS

Plaintiffs seek leave to amend to add claims for punitive damages. Plaintiffs contend the evidence substantiates three theories supporting punitive damages: (1) medical battery based on conditional consent; (2) fraud through the intentional concealment of material facts; and (3) breach of fiduciary duty through the concealment of financial self-interest.

A. MEDICAL BATTERY

Plaintiffs' proposed third amended complaint ("TAC") alleges that the Pollard Defendants maliciously proceeded with prenatal care, labor and delivery in willful and conscious disregard of Monica's conditioned consent. (TAC, ¶ 148). Monica conditioned her consent to continued prenatal care and delivery on confirmation through the anatomy ultrasound that her baby was healthy. (*Id.* at ¶ 139). The TAC also alleges that the Pollard acted fraudulent by intentionally concealing from Monica that (1) the May 5, 2023 ultrasound worksheet noted "arms remained cross"; and (2) the fetal upper extremities were not adequately visualized despite billing the examination as CPT code 76811 for a detailed fetal anatomic examination. (*Id.* at ¶ 148).

⁵ Plaintiffs originally sought leave to add punitive damages against defendant Kevin Pung ("Pung") as well. The parties stipulated to withdraw the motion against Pung. (August 14, 2026 Stipulation and Order).

To recover on a battery theory, a plaintiff must establish that: (1) consent to the medical procedure was conditioned on a specific term; (2) the defendant intentionally violated the condition while performing the procedure; and (3) the plaintiff suffered harm because of the violation. (*Ashcraft v. King* (1991) 228 Cal.App.3d 604, 611 (*Ashcraft*)). The element of deliberate intent to deviate from consent (i.e. willful disregard of rights or malice) is present where a plaintiff gives permission for one procedure but receives another. (*Id.* at p. 613).

Here, Plaintiffs' evidence is sufficient to state and substantiate the claim for punitive damages based on fraud and malice. Monica declares that she consistently informed the Pollard Defendants that she would continue her pregnancy only if the baby was healthy and that the anatomy scans revealed her baby was healthy. (Declaration of Monica, ¶¶ 4-6). The condition was not satisfied. The May 5, 2023 worksheet contained the notation that the "arms remained cross", and Dr. Pollard admitted in her discovery responses that restricted fetal extremity movement may indicate a fetal abnormality. (Declaration of Haberkorn, Exh. A [May 5, 2023 Worksheet]; Exh. F [Amended Pollard Response to Requests for Admission], p. 2:4-18). Monica, however, never received the May 5, 2023 worksheet, and no one told her that the baby's arms and hands had not been adequately seen. (Declaration of Monica, ¶ 8). Instead, her chart represented that the arms were visualized and normal. (Declaration of Haberkorn, Exh. B [May 5, 2023 Medical Chart]). Monica continued with her pregnancy, and Rocco was born with congenital anomalies among other conditions. (*Id.* at ¶¶ 8-10). The evidence indicates the Pollard Defendants knew of Monica's express condition, knew that the May 5, 2023 worksheet was inconsistent with the May 5, 2023 Medical Chart, but nonetheless told Monica that the May 5, 2023 exams and subsequent exams did not reveal any abnormalities.

Furthermore, Monica received a standard second-trimester scan in-house rather than the referral-level targeted "level 2" ultrasound at a Prenatal Diagnostic Center ("PDC"). Monica understood that the PDC scan would be a "specialist-level examination capable of ruling out problems with the baby," and help satisfy her express condition for continuing the pregnancy. (Declaration of Monica, ¶ 5). She was not informed that the referral to the PDC had been abandoned. (*Id.* at ¶ 8). Instead, Dr. Pollard performed the standard second-trimester scan in-house and billed it at the specialist code, CPT 76811. (Declaration of Haberkorn, Exh. G [Pollard Response to Special Interrogatories] at pp. 18:11-19:5; May 5, 2023, Medical Chart, p. 2). Thus, the evidence indicates that Dr. Pollard provided a different procedure than the one Monica consented to in willful disregard of Monica's rights. (See *Ashcraft, supra*, 228 Cal.App.3d at p. 613).

B. INTENTIONAL MISREPRESENTATION

Plaintiffs' TAC alleges that the Pollard Defendants misrepresented that the May 5, 2023 examination revealed fetal anatomy that was visualized and within normal limits. (TAC, ¶ 158).⁶

As noted above, the elements of fraud under Civil Code section 3294 subdivision (c)(3) are established if a plaintiff demonstrates an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant, made with the intent to deprive a person of property or legal rights or otherwise causing injury.

Plaintiffs' evidence is sufficient to state and substantiate a legitimate, triable punitive damages claim under an intentional misrepresentation theory. Plaintiffs present the following admissible evidence: the May 5, 2023 worksheet containing the notation that the "arms remained cross"; Dr. Pollard reviewed the worksheet (Declaration of Haberkorn, Exh. F [Pollard Response to Requests for Admission], p. 3:11-25); Monica's chart represented the arms were visualized and normal; Plaintiff was told that no fetal anomaly had been found and that the scan was normal (Declaration of Monica, ¶ 7); and Dr. Pollard admitted that restricted fetal extremity movement may indicate a fetal abnormality. (Amended Pollard Response to Requests for Admission, p. 2:4-18).

⁶ Notably, the TAC does not allege the billing code misrepresentation as a basis for the punitive damages. Only the evidence concerning the alleged misrepresentation of the May 5, 2023 examination will be considered.

Whether Dr. Pollard’s review of the worksheet, coupled with her representation of normalcy in Monica’s medical chart, constitutes intentional concealment of a known material fact cannot be resolved with the present motion. At this stage, the court is concerned with whether facts have been pled to support the claim for punitive damages and whether evidence reveals the existence of a triable claim. (*Pomona Valley Hospital, supra*, 213 Cal.App.4th at p. 835; *Cicone v. URS Corp.* (1986) 183 Cal.App.3d 194, 203 [indicating that fraudulent intent may be alleged as a conclusion]). Given the foregoing, Plaintiffs have met their burden here.

C. BREACH OF FIDUCIARY DUTY

Plaintiffs’ TAC alleges that the Pollard Defendants concealed: (1) the May 5, 2023 worksheet notation “arms remained cross”; (2) abandonment of the April 21, 2023 referral for a level 2 ultrasound at a PDC; (3) the inability of Defendants’ in-office ultrasound equipment to record and store static and dynamic imaging; and (4) their financial self-interest in performing and billing the specialist code (CPT code 76811) for an in-house examination. (TAC, ¶ 167). Plaintiffs argue that the Pollard Defendants breached their fiduciary duty by concealing financial self-interest.

“[A] physician who is seeking a patient’s consent for a medical procedure must, in order to satisfy his fiduciary duty and to obtain the patient’s informed consent, disclose personal interests unrelated to the patient’s health, whether research or economic, that may affect his medical judgment.” (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 131-132).

Plaintiffs’ evidence demonstrates that: (1) a specialist PDC referral was ordered (Declaration of Haberkorn, Exh. C [April 21, 2023 Chart]; (2) the examination was performed in-house (May 5, 2023 Medical Chart, p. 2); (3) the exam was billed at the specialist code, CPT 76811 (*Ibid.*); and (4) Dr. Pollard was affiliated with UCSF Health Medical Foundation. (Declaration of Haberkorn, Exh. O, pp. 2:16-3:9). The evidence does not establish why the referral was not honored, whether financial considerations motivated the change to an in-house examination, or that Dr. Pollard had a separate financial interest that would affect her personal judgment. Plaintiffs’ evidence only establishes that Dr. Pollard was affiliated with UCSF.

Given the forgoing, the court concludes that the facts asserted in the proposed amendment are insufficient to support a punitive damages claim for breach of fiduciary duty. (*College Hospital, supra*, 8 Cal.4th at p. 719).

D. LIABILITY OF THE CORPORATE POLLARD DEFENDANTS

The TAC alleges that the corporate Pollard Defendants—Angela M. Pollard MD Inc., Above Parr Women’s Center, and Pollard Wellness, Inc.—are liable for punitive damages for the intentional misrepresentation and breach of fiduciary duty causes of action because each ratified the actions of Dr. Pollard, the officer, director, and/or managing agent of each entity. (TAC, ¶¶ 158, 167).

For corporate punitive damages liability, [Civil Code] section 3294, subdivision (b), requires that the wrongful act giving rise to the exemplary damages be committed by an ‘officer, director, or managing agent.’” (*White v. Ultramar* (1999) 21 Cal.4th 563, 572).

The evidence establishes that Dr. Pollard is an officer, director, or managing agent of the corporate defendants. (Pollard Response to Request for Admissions, p. 13:17-27; Declaration of Haberkorn, Exh. L [Angela M. Pollard MD Inc. and Pollard Wellness, Inc. Form Interrogatory Responses]). Because the court finds that Plaintiffs have substantiated a triable fraud claim against Dr. Pollard individually, the finding extends to the corporate defendants of which she is the controlling person.

E. LIABILITY OF CHRISTINE MARIE KULLE, NP

In opposition, the Pollard Defendants separately contend that Plaintiffs' evidence does not demonstrate that Kulle is liable for fraud. Plaintiffs' evidence establishes that Kulle was not physically working in Dr. Pollard's office on May 5, 2023, and the evidence does not demonstrate that Kulle knew of a material abnormality and intentionally concealed the same. (Declaration of Monica, ¶ 6; Declaration of Haberkorn, Exh. I [Kulle's Responses to Special Interrogatories], pp. 2:19-3:3, 6:25-7:20). The motion is denied as to Defendant Kulle.

IV. CONCLUSION

Based on the foregoing, Plaintiffs' motion for leave to amend is DENIED as to defendant Christine Marie Kulle.

Plaintiffs' motion for leave to amend to add allegations supporting a punitive damages claim for the breach of fiduciary duty causes of action is DENIED.

Plaintiffs' motion for leave to amend to add allegations supporting a punitive damages claim for the medical battery and intentional misrepresentation cause of action against defendants Angela Michelle Pollard, M.D., Angela M. Pollard MD Inc., Above Parr Women's Center, and Pollard Wellness, Inc. is GRANTED.

Plaintiffs shall file the proposed third amended complaint in accordance with ten (10) days of this order.

The Court will prepare the formal Order.

Calendar Line # 8

Case Name Yevgeniy Tilman et al vs Ruby Dobry et al

Case No. 25CV477274

Motion for Protective Order (Line # 8)

I. BACKGROUND

This case arises from a fraud and breach of contracts claim, Plaintiffs Los Gatos Therapy Center, WK Medical Group, Yevgeniy Tilman, and Bruce Melvin Wermuth (collectively "Plaintiffs") filed a Complaint against Defendants Ruby Dobry, individually, and as the Special Administrator of the Estate of Yuriy Dobry (collectively "Defendants") on October 10, 2025. On April 20, 2026, Plaintiffs filed a First Amended Complaint ("FAC") alleging six causes of actions: (1) fraud- intentional misrepresentation; (2) fraud- negligent misrepresentation; (3) fraud- concealment; (4) declaratory relief; (5) breach of contract; and (6) breach of contract. Prior to the Plaintiffs filing its FAC, Defendants filed an Anti-SLAPP and Motion to Strike. Those motions were rendered moot upon Plaintiffs' filing of the FAC.

On December 17, 2025, Defendants filed this present motion for protective order and stay of discovery. The motion included a notice of motion, motion, and Declaration of Ruby Dobry (totaling 5 pages).

II. PROCEDURAL VIOLATION

The Defendants' motion for protective order was not accompanied by a proof of service. Code of Civil Procedure section 1005 requires that a moving party must provide proof of service of the motion. Rules of Court, rule 3.1300(c) provides that a proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing. Given this procedural violation and the absence of an opposition motion or waiver of notice, the Court cannot consider the substance of this motion.